

**AGREEMENT BETWEEN THE WEXFORD COUNTY ROAD COMMISSION AND
THE CITY OF CADILLAC FOR THE DESIGN, ENGINEERING AND
CONSTRUCTION OF ROAD IMPROVEMENTS**

THIS AGREEMENT made and entered into this _____ day of _____, 2012, by and between the WEXFORD COUNTY ROAD COMMISSION (“Road Commission”), a Michigan municipal corporation, whose address is 85 West Highway M-115, Boon, Michigan 49618 and the CITY OF CADILLAC (“City”), a Michigan municipal corporation, whose address is 200 N. Lake Street, Cadillac, Michigan 49601.

WHEREAS, the Road Commission and the City met and developed a plan to improve traffic and safety at the intersection of Plett Road and Thirteenth Street (the “Project”), a portion of which is located within the City; and

WHEREAS, the Project includes, but is not limited to the construction of a “roundabout” at the intersection of Plett Road and Thirteenth Street; and

WHEREAS, the Road Commission has designed, engineered and will construct the Project in accordance with the plans and specifications on file with the City; and

WHEREAS, MCL 124.1 et seq. authorizes municipal corporations to enter into contracts with other municipal corporations “for the ownership, operation, or performance, jointly, or by any 1 or more on behalf of all, of any property, facility or service which each would have the power to own, operate or perform separately”; and

WHEREAS, the Road Commission sought and received partial funding for the Project through the Michigan Department of Transportation’s Safety Program; and

WHEREAS, the Road Commission has requested that the City contribute Sixty Thousand Dollars (\$60,000) to the unfunded portion of the Project for the City’s share of engineering, grant fund matching and construction engineering; and

WHEREAS, the City has determined that entering into this Agreement will benefit the health, safety and welfare of the City’s residents by improving the traffic and safety at the intersection of Plett Road and Thirteenth Street.

NOW, THEREFORE, for and in consideration of the mutual promises herein made by the parties hereto, it is mutually agreed as follows:

1. The Road Commission will design and construct the Project in substantial compliance with the plans and specifications on file with the City, which are made an integral and necessary part of this Agreement by reference as if fully set forth herein. Any substantial changes to the plans and specifications for the portion of the Project located within the City must be approved in writing by the City.

2. The Road Commission will pay, all cost and expenses, including but not limited to engineering, grant fund matching and construction engineering for the box culvert and all associated work. The City and the Road Commission will share equally in the cost and expenses of engineering, grant fund matching and construction engineering for the portion of the Project that relates to the "roundabout." Notwithstanding, the City's total share of the cost and expenses related to the "roundabout" shall be equal to or less than Sixty Thousand Dollars (\$60,000) and the City shall not be liable for any amount in excess of Sixty Thousand Dollars (\$60,000). Any cost overruns, change orders or similar charges in excess of the City's maximum cost of Sixty Thousand Dollars (\$60,000) shall be an obligation and paid by the Road Commission.
3. By executing this Agreement, and provided the Project is constructed as herein, the parties hereto grant to each other all easements necessary for the construction of the Project for use by the Public in accordance with the laws, rules and regulations established and enforced by the City.
4. By executing this Agreement the individuals executing this Agreement represent and warrant that each has the authority to enter this Agreement and to bind the Road Commission or the City to the terms and conditions contained herein.

IN WITNESS WHEREOF, the parties hereto have on the date first above written set their hands and seals.

CITY OF CADILLAC

By: _____
William S. Barnett, Mayor

By: _____
Christine L. Benson, Clerk

WEXFORD COUNTY ROAD COMMISSION

By: _____
Alan Cooper, Manger (WCRC)

By: _____
Karl Hanson, Engineer (WCRC)